

An Act

ENROLLED SENATE
BILL NO. 1061

By: Reinhardt of the Senate

and

Moore of the House

An Act relating to the Oklahoma Secure and Fair Enforcement for Mortgage Licensing Act; amending 59 O.S. 2021, Section 2095.6, as amended by Section 4, Chapter 218, O.S.L. 2024 (59 O.S. Supp. 2025, Section 2095.6), which relates to license and registration; defining term; establishing certain license renewal fee; updating statutory references; updating statutory language; and providing an effective date.

SUBJECT: Mortgage licensing

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 59 O.S. 2021, Section 2095.6, as amended by Section 4, Chapter 218, O.S.L. 2024 (59 O.S. Supp. 2025, Section 2095.6), is amended to read as follows:

Section 2095.6. A. As used in this section, "originated" means loans closed in the name of the mortgage broker or mortgage lender, and shall not include brokered loans.

B. Applicants for a license shall apply on a form as prescribed by the Administrator of Consumer Credit.

~~B.~~ C. In order to fulfill the purposes of the Oklahoma Secure and Fair Enforcement for Mortgage Licensing Act, the Administrator is authorized to establish relationships or contracts with the Nationwide Multistate Licensing System and Registry or other entities designated by the Nationwide Multistate Licensing System

and Registry to collect and maintain records and process transaction fees or other fees related to licensees or other entities or individuals subject to the Oklahoma Secure and Fair Enforcement for Mortgage Licensing Act.

~~C.~~ D. In connection with an application for licensing as a mortgage loan originator, the applicant shall, at a minimum, furnish to the Nationwide Multistate Licensing System and Registry information concerning the applicant's identity including:

1. Fingerprints for submission to the Federal Bureau of Investigation and any governmental agency or entity authorized to receive such information for a state, national and international criminal history background check; and

2. Personal history and experience in a form prescribed by the Nationwide Multistate Licensing System and Registry and the Administrator to obtain:

- a. an independent credit report obtained from a consumer reporting agency defined in 15 U.S.C., Section 1681a(p), and
- b. information related to any administrative, civil or criminal findings by any governmental jurisdiction.

~~D.~~ E. In connection with an application for licensing as a mortgage broker or mortgage lender, the applicant shall, at a minimum, furnish to the Nationwide Multistate Licensing System and Registry information concerning each owner, officer, director or partner, as applicable including:

1. Fingerprints for submission to the Federal Bureau of Investigation and any governmental agency or entity authorized to receive such information for a state, national and international criminal history background check; and

2. Personal history and experience in a form prescribed by the Nationwide Multistate Licensing System and Registry and the Administrator to obtain:

- a. an independent credit report obtained from a consumer reporting agency described in 15 U.S.C., Section 1681a(p), and
- b. information related to any administrative, civil or criminal findings by any governmental jurisdiction.

~~E.~~ F. For purposes of this section and in order to reduce points of contact which the Federal Bureau of Investigation may have to maintain for purposes of paragraph 1 and subparagraph b of paragraph 2 of subsection ~~D~~ E of this section, the Administrator may use the Nationwide Multistate Licensing System and Registry as a channeling agent for requesting information from and distributing information to the United States Department of Justice or any governmental agency.

~~F.~~ G. For the purposes of this section and in order to reduce the points of contact which the Administrator may have to maintain for purposes of subparagraphs a and b of paragraph 2 of subsection ~~D~~ E of this section, the Administrator may use the Nationwide Multistate Licensing System and Registry as a channeling agent for requesting and distributing information to and from any source so directed by the Administrator.

~~G.~~ H. A license issued under the Oklahoma Secure and Fair Enforcement for Mortgage Licensing Act shall be valid for a period of one (1) year, unless otherwise revoked or suspended by the Administrator as provided in the Oklahoma Secure and Fair Enforcement for Mortgage Licensing Act.

~~H.~~ I. The Administrator, on determining that the applicant is qualified and upon payment of the fees by the applicant, shall issue a license to the applicant. An applicant who has been denied a license may not reapply for the license for sixty (60) days from the date of the previous application. A new license issued on or after November 1 shall be effective through December 31 of the following calendar year.

~~I.~~ J. A licensee shall pay the renewal fee on or before December 1. If the license is not renewed by December 1, the licensee shall pay a late renewal fee as prescribed by rule of the Commission on Consumer Credit. Licenses not renewed by December 31

shall expire and the licensee shall not act as a mortgage broker, mortgage lender or mortgage loan originator until a new license is issued pursuant to the Oklahoma Secure and Fair Enforcement for Mortgage Licensing Act. A license shall not be granted to the holder of an expired license except as provided in the Oklahoma Secure and Fair Enforcement for Mortgage Licensing Act for the issuance of an original license.

~~J.~~ K. A licensee shall prominently display the mortgage broker, mortgage lender or mortgage loan originator license in the principal place of business of the mortgage broker, mortgage lender or mortgage loan originator and any branch office of the mortgage broker or mortgage lender.

~~K.~~ L. 1. An applicant for a mortgage broker or mortgage lender license shall pay a fee of One Thousand Two Hundred Dollars (\$1,200.00). This fee shall cover the application fee and examination fee for all registered locations, including any changes of address.

2. Mortgage broker or mortgage lender licenses may be renewed by submitting an annual assessment fee. The annual assessment fee shall:

- a. be based on the dollar volume of loans originated for residential real property located in Oklahoma during the twelve-month period ending June 30,
- b. be based on the dollar volume of loans serviced for residential real property located in Oklahoma as reported on the Q2 mortgage call report for the period ending on June 30,
- c. be determined by applying a factor of eight-thousandths of a percent (0.008%) of the dollar volume of loans originated and the dollar volume of loans serviced in Oklahoma, and
- d. cover:
 - (1) the renewal fee for the principal office and any branches, and

(2) any examination-related costs incurred by the Department of Consumer Credit.

3. Beginning November 1, 2024, the annual assessment fee shall not be:

- a. less than One Thousand Dollars (\$1,000.00),
- b. more than Forty Thousand Dollars (\$40,000.00) for the portion of the assessment calculated according to subparagraph a of paragraph 2 of this subsection, nor
- c. more than Seventeen Thousand Five Hundred Dollars (\$17,500.00) for the portion of the assessment calculated according to subparagraph b of paragraph 2 of this subsection.

4. Beginning November 1, 2025, the annual assessment fee shall not be:

- a. less than One Thousand Dollars (\$1,000.00),
- b. more than Forty Thousand Dollars (\$40,000.00) for the portion of the assessment calculated according to subparagraph a of paragraph 2 of this subsection, nor
- c. more than Twenty-seven Thousand Five Hundred Dollars (\$27,500.00) for the portion of the assessment calculated according to subparagraph b of paragraph 2 of this subsection.

5. Beginning November 1, 2026, the annual assessment fee shall not be:

- a. less than One Thousand Dollars (\$1,000.00),
- b. more than Forty Thousand Dollars (\$40,000.00) for the portion of the assessment calculated according to subparagraph a of paragraph 2 of this subsection, nor

- c. more than Thirty-five Thousand Dollars (\$35,000.00) for the portion of the assessment calculated according to subparagraph b of paragraph 2 of this subsection.

6. Beginning November 1, 2027, the annual assessment fee shall not be:

- a. less than One Thousand Dollars (\$1,000.00),
- b. more than Forty Thousand Dollars (\$40,000.00) for the portion of the assessment calculated according to subparagraph a of paragraph 2 of this subsection, nor
- c. more than Forty Thousand Dollars (\$40,000.00) for the portion of the assessment calculated according to subparagraph b of paragraph 2 of this subsection.

7. A late renewal fee shall be as prescribed by rule of the Commission on Consumer Credit.

8. Branch offices shall be registered with the Department and shall be accompanied by an initial registration fee of One Hundred Fifty Dollars (\$150.00).

9. A fee as prescribed by rule of the Commission on Consumer Credit shall be charged for each license change, duplicate license or returned check.

10. A fee as prescribed by rule of the Commission on Consumer Credit shall be paid by applicants and licensees into the Oklahoma Mortgage Broker and Mortgage Loan Originator Recovery Fund as provided for in Section 2095.20 of this title for each initial application and each renewal application.

11. Each additional trade name used by a licensee shall be registered with the Department and shall be accompanied by an initial registration fee of One Hundred Fifty Dollars (\$150.00).

12. The Administrator of Consumer Credit may reinstate a license within thirty-one (31) days of the expiration of the license if the licensee pays the assessment fees and a reinstatement fee of Five Hundred Dollars (\$500.00). A ~~licensee~~ license shall not be

reinstated when the renewal application, fees, or any required information is received on or after February 1 of the following year that the renewal application was due.

13. The Administrator may reduce annual assessment fees on a pro rata basis for a specific renewal period by reducing the factor applied to the dollar volume of loans originated and serviced. The Administrator shall notify licensees of an annual assessment fee reduction prior to November 1 of the specific license renewal period. An annual assessment fee does not include an initial license fee for purposes of this subsection.

~~L.~~ M. 1. An applicant for an initial mortgage loan originator license shall pay a fee of Four Hundred Fifty Dollars (\$450.00).

2. An applicant renewing a mortgage loan originator license shall pay a fee of Two Hundred Fifty Dollars (\$250.00).

3. A late renewal fee shall be as prescribed by rule of the Commission on Consumer Credit.

4. A fee as prescribed by rule of the Commission shall be paid by applicants and licensees into the Oklahoma Mortgage Broker and Mortgage Loan Originator Recovery Fund, as provided in Section 2095.20 of this title, for each initial application and each renewal application.

SECTION 2. This act shall become effective November 1, 2026.

Passed the Senate the 11th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 6th day of May, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____